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CASE #	CASE NAME	HEARING NAME
CVME2502267	SAXON VS NORTH COUNTY SAND & GRAVEL, INC.	PLAINTIFF'S MOTION TO VACATE DISMISSAL

Tentative Ruling: Motion to vacate dismissal is granted. CMC is set on 10-22-26 8:30 AM, Dept. M301. Plaintiff will give notice of order and upcoming hearing.

2.

CASE #	CASE NAME	HEARING NAME
CVME2606622	HANNA VS WINCHESTER TRAILS, INC.	HEARING ON PRELIMINARY INJUNCTION

Tentative Ruling: Preliminary Injunction is Denied.

Plaintiff, Michael James Hanna, alleges he owns and resides at 33070 Big Range Dr. in Murrieta (Winchester) in a common interest development known as Winchester Trails, which is subject to CC&Rs and is operated by Defendant, Winchester Trails, Inc. (HOA). Plaintiff is a permanently disabled veteran who suffers from physical and mental impairments that limit his life activities. On 8/15/25, Plaintiff submitted a written request for a reasonable accommodation to park an RV in the driveway due to his disability. The HOA temporarily paused enforcement, requested additional information, and thereafter refused to grant the accommodation. Plaintiff alleges that the HOA has routinely sent employees to photograph the property without his consent for enforcement purposes, which he objected to in writing. Other homeowners park RVs for extended periods without comparable enforcement action by Defendants. He also alleges the HOA's Board lacks authority to engage in enforcement and other activities. On 4/6/26, Defendant, The Management Trust, notified Plaintiff that a lien had been placed on the property and demanded \$391.62., which Plaintiff characterizes as selective and retaliation.

Plaintiff filed his Complaint on 5/14/26 alleging eight causes of action: 1) violation of Fair Employment and Housing Act (FEHA) – failure to provide reasonable accommodation and retaliation; 2) violation of FEHA; 3) violation of the Unruh Civil Rights Act; 4) declaratory relief; 5) injunctive relief; 6) intentional infliction of emotional distress; 7) negligent infliction of emotional distress; and 8) breach of fiduciary duty.

Plaintiff, Michael James Hanna, brings this OSC Re: Preliminary Injunction to prohibit Defendants from CC&R enforcement activities. (CCP §§ 526(a)(2)-(4), 527(c)(1).) Plaintiff argues he is trying to preserve the status quo while this action proceeds; that a recorded lien would cloud title to his home and violate his housing rights; that the HOA continues to add pre-lien charges, which has affected Plaintiff's credit; that the HOA improperly authorizes expenditures that primarily benefit directors; that Plaintiff establishes a reasonable probability of prevailing on his causes of action; that the balance of harms favors Plaintiff; and, that the undertaking should be waived or set nominally.

Defendants, HOA, *et. al.*, oppose the OSC arguing that the requested interim restrictions are extraordinary; that Plaintiff's pleadings/exhibits establish substantial

factual disputes; that Plaintiff has not established the specific grounds required for injunctive relief (e.g., Plaintiff's account history shows collection activity pre-dating his accommodation request); that Plaintiff has not established that a lien has actually been recorded; that Plaintiff's requests to restrain future Board actions based on his contention that the Board lacks authority are disputed and speculative; and, that Plaintiff has not established the likelihood of success on the merits nor the balance of harms is in his favor.

The Reply re-asserts prior arguments and adds that Defendants are trying to "reduce this dispute to a parking request and a possible future lien" but, there is more to it.

A decision to grant or deny a preliminary injunction¹ is not an ultimate adjudication of the dispute, but simply a provisional remedy intended to preserve the status quo pending a trial on the merits. (*Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 528; *Hunt v. Superior Court* (1999) 21 Cal.4th 984, 999; *Jamison v. Department of Transportation* (2016) 4 Cal.App.5th 356, 361; *White v. Davis* (2003) 30 Cal.4th 528, 544; *Costs Mesa City Employees' Ass'n v. City of Costa Mesa* (2012) 209 Cal.App.4th 298, 305.)²

"A superior court must evaluate two interrelated factors when ruling on a request for a preliminary injunction: (1) the likelihood that the plaintiff will prevail on the merits at trial and (2) the interim harm that the plaintiff would be likely to sustain if the injunction were denied as compared to the harm the defendant would be likely to suffer if the preliminary injunction were issued." (*Smith v. Adventist Health System/West* (2010) 182 Cal.App.4th 729, 749.) This test functions on a sliding scale, such that a greater showing on one factor will mean less is required on the other. (*Butt v. State of Calif.* (1992) 4 Cal.4th 668, 678.) It is the moving party's burden of proof. (*O'Connell v. Superior Court (Valenzuela)* (2006) 141 Cal. App.4th 1452, 1481.)

Plaintiff Has Not Demonstrated a Threat of Irreparable Harm - Before the trial court can exercise its discretion to issue a preliminary injunction, the applicant must make a *prima facie* showing of entitlement to injunctive relief and must demonstrate a real threat of immediate and irreparable injury due to the inadequacy of legal remedies. (CCP § 526(a); *Triple A Machine Shop, Inc. v. State of California* (1989) 213 Cal.App.3d 131, 138.) Injunctions are rarely granted where a lawsuit for damages provides an adequate

¹ There are two different types of preliminary injunctions, prohibitory and mandatory. "[A]n injunction is prohibitory if it requires a person to refrain from a particular act and mandatory if it compels performance of an affirmative act that changes the position of the parties." (*Davenport v. Blue Cross of California* (1997) 52 Cal.App.4th 435, 446-447. Where the preliminary injunction mandates an affirmative act that changes the status quo, it is scrutinized even more closely for abuse of discretion. (*Shoemaker v. County of L.A.* (1995) 37 Cal. App. 4th 618, 625.)

"The judicial resistance to injunctive relief increases when the attempt is made to compel the doing of affirmative acts. A preliminary mandatory injunction is rarely granted, and is subject to stricter review on appeal." (*Board of Supervisors v. McMahon* (1990) 219 Cal. App. 3d 286, 295.) "The granting of a mandatory injunction pending trial is not permitted except in extreme cases where the right thereto is clearly established." (*Teachers Ins. & Annuity v. Furlotti* (1999) 70 Cal.App.4th 1487, 1493.)

² The decision to grant or deny a request for a preliminary injunction rests in the sound discretion of the trial court [*14859 Moorpark Homeowner's Assn. v. VRT Corp.* (1998) 63 Cal.App.4th 1396, 1402-03], and its decision will not be reversed on appeal absent a showing of abuse of discretion. (*Cohen v. Board of Supervisors* (1985) 40 Cal.3d 277, 286.)

remedy. (see *Thayer Plymouth Ctr, Inc. v. Chrysler Motors Corp.* (1967) 255 Cal.App.2d 300, 307; *Pacific Decision Sciences Corp. v. Sup. Ct. (Maudlin)* (2004) 121 Cal.App.4th 1100, 1110.) In considering the “adequacy” of damages as a remedy, the court may consider whether the defendant is shown to be insolvent. (*West Coast Constr. Co. v. Oceano Sanitary Dist.* (1971) 17 Cal.App.3d 693, 700 [“mere monetary loss is not irreparable in contemplation of the remedy of injunction unless there is an averment or a showing that parties causing the loss are insolvent or in any manner unable to respond in damages”.])

Here, Plaintiff seeks to enjoin the HOA from recording or enforcing a lien on his property based on disputed charges; imposing additional pre-lien or other enforcement charges; taking retaliatory, selective, or discriminatory enforcement actions against him; and restraining the Board from authorizing, approving, expanding discretionary contracts or expenditures (e.g., discretionary social expenditures) affecting HOA members without a lawfully constituted Board. He also seeks to require preservation of records and to waive or minimize the requisite undertaking.

In support of his assertion that he is and/or will be immediately and irreparably harmed without the preliminary injunction, he provides the HOA’s transaction history concerning his account. He highlights two pre-lien charges of \$220 assessed on 4/16/26 and 8/3/26 and alludes to additional charges *if* a lien is recorded. Thus, he acknowledges that no lien has yet been recorded. Importantly, Defendants point out that Plaintiff’s account history documents monthly assessments and late charges dating back to 11/2/20 along with pre-lien fees that pre-date (e.g., 2/9/22, 12/4/23) his request for accommodation regarding his RV (8/15/25). (Supp.Brief, Dec.Hanna ¶ 5, Ex. “2”.)

Moreover, Plaintiff has an extensive history of paying his monthly assessments late. (*Ibid.*) And, the account history does specify that the recent pre-lien fees are related to the request for accommodation regarding the RV as opposed to routine monthly assessments/late fees. (*Ibid.*) In fact, the 8/3/26 “Notice of Intent to Lien” indicates an outstanding balance for assessments including the pre-lien fee but, does not mention the issue concerning Plaintiff’s request for accommodation for his RV. (*Id.* ¶ 6, Ex. “3”.) Plaintiff also argues that the pre-lien charges are reported in his credit files and that he has been denied credit as a result. (*Id.* ¶ 11.) Again, this is not clearly related to the accommodation issue.

Plaintiff further asserts that the HOA somehow improperly approved discretionary social spending in the amount of \$13,000 but, tabled seven lien authorizations. (*Id.* ¶¶ 7-9, Exs. “4” – “6”.) The purpose of this assertion is unclear. Plaintiff argues that a preliminary injunction is required to prohibit new discretionary financial commitments unrelated to ordinary maintenance, necessary repairs, emergency action, or ministerial compliance.

The salient question here is whether Plaintiff has presented sufficient evidence that he will suffer irreparable harm. (see *White v. Davis* (2003) 30 Cal.4th 528, 554 [a petitioner must “present evidence of the irreparable injury or interim harm that it will suffer if an injunction is not issued pending an adjudication of the merits”].) It is only if this threshold requirement is met that the court proceeds to examine the two interrelated factors of likelihood of prevailing on the merits and the relative interim harm to the parties. (*Costa*

Mesa City Employees' Assn. v. City of Costa Mesa (2012) 209 Cal.App.4th 298, 306, citing *Butt v. State of California* (1992) 4 Cal.4th 668, 677-78.)

Here, Plaintiff merely concludes that the HOA's collection activity is causing him immediate and irreparable harm, which he claims is escalating. He also concludes that based on recent approvals, the Board should be enjoined from any future discretionary commitments unrelated to ordinary assessments, etc. However, Plaintiff has not sufficiently established *his immediate and irreparable harm* to support a preliminary injunction. Thus, the OSC should be denied at this point. Nonetheless, the analysis continues below.

Likelihood of Success on the Merits - If the Court determines that Plaintiff *will* suffer irreparable harm if the status quo is not maintained (which he did not establish), Plaintiff must then establish the likelihood of success on the merits of his claims.

Here, Plaintiff merely asserts that the Court is to evaluate the likelihood of success. However, he does not demonstrate that he will likely succeed on any of his causes of action. There is no dispute that Plaintiff has a disability for which he requested an accommodation; that the request was acknowledged by the HOA; or that after requesting additional information the HOA denied his request. Plaintiff concludes that having the RV is necessary due to his disability. Notably, the HOA points out that Plaintiff has not made a showing that how his request is necessary or reasonable – how does allowing an RV to be parked in Plaintiff's driveway “afford him equal use and enjoyment of his residence, as opposed to being a preferred or convenient arrangement”? (Oppo. p. 7:23-25.) Thus, Plaintiff has not demonstrated a likelihood of success on the merits.

Balance of Harms - Plaintiff argues that with the preliminary injunction, he can avoid recurring pre-lien charges, adverse credit consequences, denial of credit, and threats of his title being clouded if the HOA maintains his account without the pre-lien charges, not recording a lien, and postponing new HOA discretionary commitments. Plaintiff does not show that the HOA would suffer no harm from the proposed preliminary injunction.

To the contrary, the HOA asserts that if the preliminary injunction were issued, it would require the Court to monitor the HOA's activities to see if its actions were routine, discretionary, and/or sufficiently authorized.

More importantly, as to the HOA's activities, Plaintiff seems to actually be asking for a *mandatory* injunction. He seeks to enjoin affirmative acts by the HOA going forward, which changes the status quo, and will be scrutinized even more closely for abuse of discretion. (*Shoemaker v. County of L.A.* (1995) 37 Cal. App. 4th 618, 625.) Based on the foregoing, Plaintiff has not established a basis for the Court to issue a preliminary injunction.